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Case Name: *Joseph Rostam v. Daniel A. Gonzales, et al.*

Case No.: 25CV477783

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Joseph Rostam (“Plaintiff”) moves for an Order requiring all parties to participate in mediation in good faith within 45 days, requiring defense counsel to provide three available mediation dates within 10 court days, and for monetary sanctions of \$1,250.00 for unnecessary delay and wasted costs. Notice of Amended Motion (the “Amended Motion”) at 1:21-25 (filed: April 17, 2026).

The Amended Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

At the outset, the Court would like to state that it appreciates and understands Plaintiff’s frustration that caused him to bring this Amended Motion. And the Court certainly believes Plaintiff and finds it to be a fact that, as Plaintiff puts it, “Plaintiff has repeatedly cooperated in scheduling, paid mediation fees, and remained available [for mediation]. Prior mediation efforts stalled and later efforts were disrupted by cancellations and non-confirmations [by other parties in this action]. Amended Motion at 2:5-6. All true.

Moreover, this Court does encourage *all* parties, including in this civil action and all civil actions, to resolve their cases by mediation. Silicon Valley is blessed with many excellent, efficient, and effective mediators who each day help parties resolve their disputes amicably, often generating creative solutions and resolutions that enable the parties to move forward productively and peacefully. So, lest there be any doubt, the Court would welcome and encourage all parties in *this* case to resolve their disputes by mediation.

But Plaintiff’s Amended Motion has two fatal flaws.

First, while he asks the Court to compel all parties to participate in mediation, Plaintiff fails to argue let alone establish any statutory or contractual basis in law by which the Court could force all parties here to mediate this case.

Second, and more importantly in the Court’s view, even assuming for the sake of argument that this Court has some power (inherent or otherwise) to order all these parties to participate in mediation, to do so would make no practical sense because the fundamental principles of mediation are:

- *voluntary* participation, and
- *self-determination* of each party.

And that is not just the policy view of this Court; that is the clear law of California set forth in California Rule of Court 3.853 on mediation, which states in mandatory terms:

A mediator must conduct the mediation in a manner that supports the principles of voluntary participation and self-determination by the parties. For this purpose the mediator must:

1. Inform the parties, at or before the outset of the first mediation session, that any resolution of the dispute in mediation requires a voluntary agreement of the parties;
2. Respect the right of each participant to decide the extent of his or her participation in the mediation, *including the right to withdraw from the mediation at any time*; and
3. Refrain from coercing any party to make a decision *or to continue to participate in the mediation*.

C.R.C. 3.853 (emphasis added).

So in light of these well-settled, bedrock principles that hold as a matter of law that any party may withdraw from mediation at any time and has the right *not* to continue to participate in the mediation at all, it would make no practical sense whatever for this Court to Order any of these parties to a mediation that they would have the right to immediately withdraw from and cease participating in. And this Undersigned Judge will not Order something that makes no practical sense and is not required by law.

Likewise, regarding Plaintiff's request for sanctions against Defendants (and any other parties in the Cross-Action) for causing delay and wasting costs regarding a mediation, the Court must respectfully deny that request as well because the Court cannot and will not sanction any party for failing to engage in mediation when under California law participating in mediation is *voluntary*.

While resolving cases by mediation by agreement of the parties themselves may be *highly* preferable to the costs and uncertainty of traditional litigation by civil action, no party is *required* to do so in California. And this Court won't sanction a party for not doing something that is voluntary.

So while this Court encourages all the parties here to resolve their disputes in mediation, the Court will not force them to do so or punish them for not doing so.

Conclusion & Order

Accordingly, the Court respectfully **DENIES** Plaintiff's Amended Motion in all respects.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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Case Name: *City of Sunnyvale v. Rosella Montoya Lopes, et al.*

Case No.: 24CV451323

*See **Order*** above. (As the Court dismissed without prejudice this receivership action on agreement of all parties [including Mr. Nigro, whom the Court first appointed as Successor in Interest to the deceased Defendant Lopes] at the July 8, 2026 Case Management Conference [*see* 07/08/2026 Minute Order], this Motion objecting to the November 26, 2026 Receiver's Report is **VACATED as MOOT.**)